

Mohd. Nadeem Siddiqui v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 20 July 2026 · Writ-C No. 7124 of 2026 ·
Petition disposed of; connection directed after document compliance.

HEADNOTE

Disputed title of the premises is not a ground to refuse a new electricity connection. At most the licensee may take an indemnity bond under Annexure 4.2 of the Electricity Supply Code, 2005, even if the applicant is not the owner. Opposite party no.4 (MVVNL) directed to intimate remaining documents within one week of a certified copy; on the petitioner supplying them within three days, to grant the 2 kW connection within a further week.

FACTUAL SUMMARY

The petitioner, owner of plot nos. 29/1 and 12 at Ujariyaon near Khatibin Dadi Masjid, Gomti Nagar, Lucknow, applied to opposite party no.4 (MVVNL) for a 2 kW electricity connection, paid the prescribed application fee and submitted the required documents, but the connection was not granted. Counsel for MVVNL submitted that there was information the property was disputed. The petitioner sought a writ directing release of the connection.

REUSABLE CONSTRUCTIONS

1. Disputed title of the premises is not a ground to refuse a new electricity connection; at most the licensee may take an indemnity bond under Annexure 4.2, even if the applicant is not the owner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new connection — disputed title — indemnity bond

HOLDING

Even if the premises are disputed property, the licensee cannot decline to grant an electricity connection. At best it may take an indemnity bond under Annexure 4.2 of the Electricity Supply Code, 2005, even if the applicant is not the owner. Opposite party no.4 was directed to intimate the documents still required within one week of production of a certified copy; the petitioner to supply them within three days; and, on compliance, to grant the connection no later than one week thereafter in accordance with law.

PRINCIPLE TAGS

new-connection-disputed-title-indemnity-bond Disputed title of the premises is not a ground to refuse a new electricity connection. At most the licensee may take an indemnity bond under Annexure 4.2 of the Electricity Supply Code, 2005, even if the applicant is not the owner..